

CONSTRUCTION CONTRACT

Contract Number: ORC-2025-057
Project Name: Oceana Residences — 57-Story Luxury Condominium
Date: June 1, 2025
Location: 8701 Collins Avenue, Miami Beach, FL 33154

PARTIES TO THE AGREEMENT

This Construction Contract ("Agreement") is entered into as of June 1, 2025, by and between:

OWNER:

Oceana Development LLC
555 Brickell Avenue, Suite 3200
Miami, FL 33131
Federal Tax ID: 65-1234567

CONTRACTOR:

Turner Construction Company
375 Hudson Street
New York, NY 10014
License No.: CGC1234567 (Florida)
Federal Tax ID: 13-9876543

1. PROJECT DESCRIPTION

The Contractor agrees to furnish all labor, materials, equipment, and services necessary to complete the construction of a 57-story oceanfront luxury condominium tower with 120 residences (ranging from 2,400 to 8,500 SF), 4 penthouses, 12-story parking podium, resort-level amenity deck (pool, spa, fitness center, private theater), private marina berths, and all associated site work, utilities, and infrastructure improvements in accordance with the Contract Documents.

Building Specifications:

- Total Height: 228 meters (748 feet) above grade
- Total Area: Approximately 1,450,000 gross square feet
- Structure: Post-tensioned concrete with auger-cast pile foundation
- Facade: High-performance impact-resistant glazing system

- Building Systems: Full LEED Silver certification target

2. CONTRACT SUM

The Owner shall pay the Contractor for the performance of the Contract the sum of **EIGHT HUNDRED NINETY MILLION DOLLARS (\$890,000,000.00)**, subject to additions and deductions as provided in the Contract Documents. This amount includes all labor, materials, equipment, permits, insurance, taxes, overhead, and profit.

Description	Amount	Percentage
Site Preparation & Foundation	\$125,000,000	14.0%
Structural Frame & Concrete	\$210,000,000	23.6%
Building Enclosure & Facade	\$145,000,000	16.3%
MEP Systems	\$185,000,000	20.8%
Interior Finishes	\$125,000,000	14.0%
Amenity Deck & Pool	\$35,000,000	3.9%
Contingency & Allowances	\$65,000,000	7.3%
TOTAL CONTRACT SUM	\$890,000,000	100.0%

3. CONTRACT TIME

The Contractor shall commence work within ten (10) calendar days of receiving the Notice to Proceed and shall achieve Substantial Completion within **thirty-six (36) months** from the commencement date.

Milestone	Target Date	Duration
Notice to Proceed	June 1, 2025	—
Mobilization Complete	June 15, 2025	2 weeks
Site Prep & Piling Complete	November 30, 2025	6 months
Podium Structure Complete	June 30, 2026	12 months
Tower Structure Topped Out	September 15, 2027	27 months
Facade Substantially Complete	January 31, 2028	32 months
Substantial Completion	June 1, 2028	36 months
Final Completion & Certificate of Occupancy	August 1, 2028	38 months

Liquidated Damages: If Substantial Completion is not achieved by the target date, the Contractor shall pay the Owner liquidated damages in the amount of **\$25,000 per calendar day** of delay, up to a maximum of 5% of the Contract Sum. The parties agree that actual damages for delay are difficult to ascertain and that this amount represents a reasonable pre-estimate of probable loss.

4. PAYMENT TERMS

Payment shall be made monthly based on the percentage of work completed, as certified by the Architect and approved by the Owner's Representative. The Owner shall retain ten percent (10%) of each progress payment as retainage until fifty percent (50%) of the Work is complete, after which retainage shall be reduced to five percent (5%). Final payment, including all retained amounts, shall be due thirty (30) days after Final Completion and acceptance by the Owner.

5. INSURANCE REQUIREMENTS

The Contractor shall procure and maintain the following insurance coverage throughout the duration of the Contract:

- **Commercial General Liability:** \$10,000,000 per occurrence / \$20,000,000 aggregate
- **Workers' Compensation:** Statutory limits for State of Florida
- **Employer's Liability:** \$5,000,000 per accident
- **Commercial Auto Liability:** \$5,000,000 combined single limit
- **Builders Risk (All Risk):** Full replacement value (\$890,000,000)
- **Professional Liability:** \$5,000,000 per claim (for design-assist services)
- **Umbrella/Excess Liability:** \$50,000,000 per occurrence

6. CONTRACT DOCUMENTS

The Contract Documents consist of this Agreement, General Conditions (AIA Document A201-2017, as amended), Supplementary Conditions, Specifications, Drawings, and all Addenda and Modifications. In the event of conflict between Contract Documents, the order of precedence shall be: (1) Modifications and Change Orders, (2) Addenda, (3) this Agreement, (4) Supplementary Conditions, (5) General Conditions, (6) Specifications, and (7) Drawings.

7. PERMITS AND APPROVALS

The Contractor shall obtain and pay for all permits, licenses, and certificates of inspection required for the proper execution and completion of the Work, including but not limited to:

- Miami-Dade County Building Permit
- Florida Department of Environmental Protection (FDEP) Construction Dewatering Permit
- U.S. Army Corps of Engineers Section 10/404 Permits (marina construction)
- Miami-Dade Aviation Department (crane permits for operations near airport)
- Florida Department of Transportation (DOT) right-of-way permits
- Miami Beach Certificate of Occupancy upon Final Completion

8. WARRANTY

The Contractor warrants that all materials and equipment furnished under the Contract will be new unless otherwise specified, and that all Work will be of good quality, free from faults and defects, and in conformance with the Contract Documents. The Contractor warrants all Work for a period of **two (2) years** from the date of Substantial Completion. Specialized systems (roofing, waterproofing, HVAC, elevators) shall carry extended manufacturer warranties as specified in Division 01 of the Specifications.

9. TERMINATION

Either party may terminate this Contract for cause upon seven (7) days' written notice if the other party fails to perform in accordance with the Contract Documents and fails to cure such failure within the notice period. The Owner may terminate this Contract for convenience upon thirty (30) days' written notice, in which case the Contractor shall be compensated for Work performed, materials delivered, demobilization costs, and reasonable profit on Work performed.

10. DISPUTE RESOLUTION

Any disputes arising out of or relating to this Contract shall be subject to mediation as a condition precedent to arbitration or litigation. If mediation is unsuccessful, disputes shall be resolved by binding arbitration in accordance with the Construction Industry Arbitration Rules of the American Arbitration Association. The place of arbitration shall be Miami, Florida, and Florida law shall govern.

IN WITNESS WHEREOF, the parties have executed this Contract as of the date first written above.

OWNER: Oceana Development LLC

CONTRACTOR: Turner Construction Company

Michael J. Rodriguez

Managing Director

Date: _____

Peter J. Davoren

President & CEO

Date: _____